
Journal

2007 PLD 539

Court

SUPREME COURT

Date

2006-04-20

Appeal No.

CIVIL PETITION NO. 512-L OF 2006

Judge

KHALIL-UR-REHMAN RAMDAY AND RAJA FAYYAZ AHMAD

Parties

MUHAMMAD BASHIR (PETITIONER) VERSUS STATION HOUSE OFFICER, OKARA CANTT. AND OTHERS (RESPONDENTS)

Lawyers

MUHAMMAD TAHIR CHAUDHRY, ADVOCATE SUPREME COURT WITH MAHMUDUL ISLAM, ADVOCATE-ON-RECORD FOR PETITIONER. EJAZ AHMED KHAN, ADVOCATE SUPREME COURT WITH CH. M. ANWAR KHAN, ADVOCATE-ON-RECORD AND RESPONDENTS NOS. 2 AND 3 (IN PERSON). CH. AAMIR REHMAN, ADDL. A. G. WITH M. ASHRAF, INSPECTOR/SO WITH GHULAM QADIR KHAN, INCHARGE INVESTIGATION, POLICE STATION CANTT. OKARA.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 154, 155, 157 & 162 CRIMINAL PROCEDURE CODE (V OF 1898) - S. 22-A(6) CONSTITUTION OF PAKISTAN (1973) - ARTICLE 199 CONSTITUTION OF PAKISTAN (1973) - ARTICLES 199 & 185(3) CRIMINAL PROCEDURE CODE (V OF 1898) - S. 22-A(6)(II) POLICE ORDER (22 OF 2002) - ARTICLE 18 CRIMINAL PROCEDURE CODE (V OF 1898) - SS. 22-A & 25

Judgment

KHALIL-UR-REHMAN RAMDAY, J.-Invoking the authority of the Sessions Judge of Okara as an Ex-officio Justice of the Peace under section 22-A(6) of the Code of Criminal Procedure, 1898, Bashir * petitioner complained that despite a written application submitted by him to the Officer Incharge of the Cantt. Police Station of Okara seeking registration of a criminal case against Faisal and Zahid respondents, the needful was not being done. He consequently prayed that the said S.H.O. be directed to do what the mandatory provisions of section 154 of the Cr.P.C. commanded him to do.

2, A learned Additional Sessions Judge who also stood nominated as an Ex-officio Justice of the Peace in terms of section 25 of the said Code and who had got entrusted with the said application, dismissed the same through an order dated 12-12-2005 which is reproduced hereunder

“Petitioner seeks direction in the name of S.H.O. for registration of case against respondents Nos. 3 to 4 and 2 unknown persons.

2. It is argued that on 3-11-2005 at about 7.15 p.m. petitioner along with Muhammad Saleem and Shoukat Ali were coming back to his Chak when reached in the territorial limits of Chak No.51/3-R, 4 armed persons stopped his car and started searching petitioner and others. It is further contended that assailants looted away Rs. 1,000 Pistol 30 bore along with licence, 3 I.D. Cards and police is still reluctant in registered of case. Hence this petition.

3. Police has submitted detailed report denying alleged occurrence.

4. Arguments heard.

5. According to the police report, no occurrence took place as alleged in this petition. Furthermore petitioner as betrayed to take oath on Holy Qur'an regarding the innocence of respondents Nos. 3 and 4. Police recorded statement under Section 157(2), Cr.P.C.

6. What has been discussed above this petition is without force, the same is hereby dismissed. File be consigned to the record room after its duly completion.”

3. It appears from the record that despite dismissal of his above mentioned application by a learned Additional Sessions Judge, Bashir petitioner did not loose heart and continued his endeavours to have as F I R. registered with respect to the crime allegedly committed against him. The record further reveals that his efforts did yield some fruit and the S.H.O. did finally obliged him by recording the requisite F.I.R. on 25-1-2006.

4. But these fruits of Bashir petitioner's success did not last long as Faisal accused hastened to rush to the Lahore high Court with a petition under Article 199 of the Constitution seeking quashment of the said F.I.R. No. 16 of 2006 ol Police Station Cantt., Okara registered for the alleged commission of offences punishable under sections 382 and 395 of the Pakistan Penal Code on the ground that the said F.I.R. was totally false and baseless; that the local police had declared that no occurrence, as alleged, had ever taken place; that the F.I.R. in question had been recorded more than two months after the alleged occurrence and finally that the F.I.R. in question was rooted in malice.

5. Through a judgment dated 22-3-2006, the learned High Court quashed the said F.I.R. but only on the ground that Bashir complainant had manoeuvred the recording of the same:-

“.....after concealing the facts of the dismissal of earlier application by the learned Additional Sessions Judge....”

6. Hence this petition.

7. Needless to say that we have heard the learned counsel for the parties at length and have benefited, immensely, from the submissions made by them.

8. We have re-produced, in para. 2 above, the order dated 12-12-2005 passed by the learned Additional Sessions Judge on the above mentioned application submitted by Bashir petitioner praying for a direction to the concerned S.H.O. to record an F.I.R. with respect to the alleged occurrence in question. What transpires from perusal of the said order is that on receipt of the said application, the same was sent to the local police for its report thereon. The said police then held an enquiry into the veracity and the correctness of the allegations levelled therein and found that no such occurrence had ever taken place and reported further that Bashir petitioner had refused to take oath on the Holy Qur'an about the guilt of the accused persons and finally that the “police recorded statement under section 157(2) Cr.P.C.”

9. Such an exercise of powers by thq learned A.S.J under section 22-A(6) of the Cr.P.C. in such a manner raises some serious questions in ou'r minds, that is: -

(a) do the provisions of law regulating the recording of F.I.Rs permit or even envisage an enquiry into the correctness or otherwise of the information which is received by an Officer Incharge of a Police Station for the purpose of being reduced into writing as a F.I.R.?

(b) does the law empower an Officer Incharge of a Police Station to refuse to record an F.I.R. only because, in his opinion, the allegations conveyed to him were false? And (c) what is the proper scope of the powers conferred through the newly-added provisions of section 22-A(6) of the Cr.P.C. and whether the said provisions conferred any new, extra or additional powers on an Ex-officio Justice of the Peace in the matter of recording of F.I.Rs.”

10. The expression “REGISTRATION OF A CRIMINAL CASE”, used in section 22-A(6), Cr.P.C. was alien to law i.e. to the Code of Criminal Procedure and the Police Rules of 1934 till the addition of the said subsection (6) to the said section 22-A of the Cr.P.C. through the Code of Criminal Procedure (Third Amendment) Ordinance, No.CXXXI of 2002 which was promulgated on 21-11-2002. We shall, however, presume that what was intended to be meant by the said expression was, in fact, the recording of F.I.R. We may also add that even the expression “FIRST INFORMATION REPORT” (F.I.R.) was not an expression of the Code of Criminal Procedure, 1898 but was in fact the name given to the “INFORMATION” mentioned in section 154 of the Cr.P.C. by Chapter XXIV of the Police Rules of 1934.

11. For some purposes, including recording of F.I.Rs., criminal offences have been categorised by the Cr.P.C. into two classes i.e. the ones which were cognizable and the others which were non-cognizable.

Section 154 of the Cr.P.C. prescribes the manner in which an information conveyed to a S.H.O. with respect to the commission of a cognizable offence was to be dealt with while the provisions of section 155(1) of the said Code tell us of the procedure envisaged vis-a-vis the information relating to a non-cognizable offence. These provisions read as under: ~

“154. Information in cognizable cases.-Every information relating to the commission of a

COGNIZABLE OFFENCE if given orally to an Officer Incharge of a Police Station SHALL be reduced to writing by him or under his direction, and be read over to the informant, and every such information, whether given in writing or reduced to writing as aforesaid shall be signed by the person giving it, and the substance thereof shall be entered in a book to be kept by such officer in such form as the Provincial Government may prescribe in this behalf. ”

155. Information in non-cognizable cases.-(1) When information is given to an Officer Incharge of a Police Station of the commission within the limits of such station of a NON-COGNIZABLE OFFENCE, he SHALL enter in a book to be kept as aforesaid the substance of such information and refer the informant to the Magistrate.” (The Emphasis and underlining is ours)

12. The scheme of law which becomes apparent from a bare perusal of these provisions is that whenever an Officer Incharge of a Police Station receives some information about the commission of an offence, he is expected first to find out whether the offence disclosed fell into the category of cognizable offences or was one which was non-cognizable. And once he was through with this exercise then the word “SHALL’ appearing in the said provisions of section 154, Cr.P.C. would take over which obliged, the S.H.O. thereafter to reduce the said information to writing in the First Information Report Register as, what is called by Chapter XXIV of the Police Rules of 1934, a F.I.R. if the offence disclosed was cognizable or else to merely record the same in the Station Diary as mentioned by section 155(1) of the Cr.P.C. and rule 24.3 of the said Rules and refer the informant to the competent Magistrate if the offence be non-cognizable. As has been mentioned above sections 154 and 155 of the Cr.P.C. are the only two provisions in the said Code which talk about the manner in which an information received by a

S. H O. relating to the commission of an offence was to be treated.

13. It may be reiterated and even emphasized that there was no provision in any law, including the said section 154 or 155 of the Cr.P.C. which authorized an Officer Incharge of a Police Station to hold any enquiry to assess the correctness or the falsity of the information received by him before complying with the command of the said provisions which obliged him to reduce the same into writing irrespective of the fact whether such an information was true or otherwise.

14. The wisdom was not far to find. If the S.H.O. was given the authority to determine the truthfulness or the falsehood of the allegations levelled against some one and thereafter to decide to record or not to record such allegations as F.I.R., then such a police officer would have got blessed with the power to decide about the guilt or innocence of an accused person. This was, however, far from the envisaged by the law- makers regarding the identification and the consequent acquittal or conviction of accused persons as the said task stood assigned only to the courts of law and had never been conceded to police officers.

15. It may be added that the Police force was not a creation of the B Code of Criminal Procedure but was a force initially established by the Police Act of 1861. The Code of Criminal Procedure only borrowed some, from amongst this force, and asked them to perform some of its functions. They had, therefore, no powers to go around doing things according to their whims or desires in the matter of administration of justice in the field of crimes. The powers enjoyed by the members of the police force were limited to the authority conferred on them by law. And it may be added that every step which the Cr.P.C. permitted a police officer to take, was subject to scrutiny and control of some court or Magistrate. It may be of benefit to give certain examples to highlight the kind of role and duties assigned to some of the members of the Police force by the Code of Criminal Procedure.

16. The provisions such as sections 54, 55, 57, 151 etc. of the Cr.P.C. oblige the S.H.O. and, in

certain cases, some other police officers, to arrest, without a warrant, persons mentioned in the said sections. The provisions of sections 60 and 61 of the Cr.P.C. then command such police officers to take the persons, so arrested, to a Magistrate without any unnecessary delay and thereafter the role of the police comes to an end and an arrested person was then to be handled only and only as per the direction of such a Magistrate. Section 550, Cr.P.C. authorises police officers to seize any property which may either be the subject-matter of some crime or which may have been used for committing some crime. Leave alone with human beings, the police does not have power even to decide the fate of the items of property so seized by them and has to produce the same before a Magistrate as required by section 523, Cr.P.C. and its disposal, thereafter, has to follow the orders of a Magistrate.

17. In the matter of ascertainment of the guilt or innocence of the persons accused of the commission of offences or in the matter of determination of the truth or otherwise of the allegations made in the said connection, the only power may the obligation cast on the police officers is to carry out the investigation of cases, on their own if the offence be cognizable (section 156, 157 and 174, Cr.P.C.) and with the permission of a Magistrate if the same be non-cognizable (section 155(2), Cr.P.C.). And 'investigation' as defined by section 4(1)(1) of the said Code, means only, the collection of evidence and no more. The impression that an Investigating Officer had any power or was even allowed to pronounce upon the guilt or innocence of an accused person was a grave misconception. In fact such an opinion expressed by an Investigating Officer was not even admissible in evidence at the trial being the opinion of a person who had never been held by the Courts of law to be an expert. Therefore, in any criminal proceedings, the job of a police officer only is to collect evidence and to place the same along with other information, before the competent Magistrate in the form of a report in terms of section 173, Cr.P.C. It would be evident from the provisions of section 63, Cr.P.C. that the fate of a person, though arrested by the police, was no longer in their hands but was at the mercy of a Magistrate and likewise the fate of an F.I.R. though recorded by a police officer but once recorded, went beyond his control and it was then only a Magistrate who could cancel it (Rule 24.7 of the Police Rules of 1934). The most which is permissible for an Investigating Officer, vis-à-vis an accused person whose case was under investigation, was to release him, on his bond, if according to the Investigating Officer there was not enough evidence available against him or no reasonable ground of suspicion existed which could justify his being forwarded to a Magistrate (section 169, Cr.P.C.). But then it will be noticed that such a step by an Investigating Officer was not final as such an accused person had to execute a bond before being so released, committing himself to appear before the competent Magistrate if and when required by such a Magistrate to face the trial. The provisions of section 173, Cr.P.C. further support this view as the S.H.O., while reporting the result of his investigation under the said section i.e. the challan, had to give the details of any accused person released under section 169, Cr.P.C. and the final fate of such a person was thereafter, again in the hands of the competent Magistrate/Court.

18. What, therefore, transpires from the above noticed scheme, the spirit, the intention and even the letter of the relevant law was that there was no room for any inquiry into the veracity of the information received by an officer incharge of a Police Station with respect to the commission of an offence and he was consequently clothed with no authority to refuse to record an F.I.R. only because, in his opinion, the information conveyed to him, lacked credibility. B

19. In so saying, we find strength from another aspect of the matter also i.e. the provisions of section 162, Cr.P.C. which provide that:

“ 162(1). No statement made by any person to a police officer in the course of an investigation under this Chapter shall, if reduced into writing, be signed by the person making it, nor shall any

such statement or any record thereof, Be used

for any purpose any inquiry or trial in respect of any offence under investigation at the time when the statement was made.....”

Any steps taken by a police officer to find out about the correctness or otherwise of the information conveyed to him would obviously entail collection of material in the form of questioning people and the parties etc. As was done by the police in the present case which is evident from the order in question of the learned A.S.J./Ex-officio Justice of the Peace dated 12-12-2005. If such an exercise was permitted to be undertaken before recording an F.I.R. then the F.I.R. reduced into writing thereafter would get hit by the prohibition contained in the said section 162, Cr.P.C. and any such F.I.R. would become a futility being inadmissible in evidence at the trial.

20. The conclusion is again irresistible that sifting of the information conveyed by an informant to an Officer Incharge of a Police Station and picking out what was correct and discarding which was false, C was not a task assigned to a S.H.O. but was an obligation entrusted, initially to a Magistrate empowered to take cognizance under section 190, Cr.P.C. and finally to the trial Court.

21. It could be said that if F.I.Rs. were permitted to be recorded without verifying the worth of the information, then the same would open flood gates for false F.I.Rs. So what and we add that this could be the concern shown only by layman and not by a law knowing person because anyone acquainted with the relevant law was expected to know that registration of an F.I.R. was only a mode of recording or preserving an information and was one of the many means to set the machinery of criminal law into motion. Otherwise we know that presence or existence of an F.I.R. did not confer any extra or additional powers on a police officer nor did the non-existence of the same withhold or take away any powers vesting in him.

22. The notion is unfounded that it was an F.I.R. which authorized a police officer to commence an investigation or that if an F.I.R. was once recorded then the S.H.O., or some other police officer deputed by him, got obliged to go through the full length of investigation. A bare perusal of the provisions of sections 155(2), 156(1), 156(3), 157(1), 174 and even those of section 202, Cr.P.C. would reveal that-existence of an F.I.R. was never a condition precedent for commencement or for the holding of an investigation. Likewise, the provisions of section 54(1) of the Cr.P.C. would demonstrate that a police officer did not require a F.I.R. to clothe him with authority to arrest a person who appeared to be concerned or was even suspected of being concerned with the commission of a cognizable offence. While we are on the subject, we may also add the F.I.R. was not a condition precedent even for the holding of a trial as would be evident from the provisions of section 190(1) of the Code of Criminal Procedure.

23. Therefore, legally speaking, the position which emerges is that the Officer in charge of a Police Station or any other police officer did not require the crutches of an F.I.R. to get clothed with authority either to commence an investigation or even to arrest a person who appeared to be concerned with the commission of a cognizable offence. Nor was there any provision in any law which commanded or even envisaged that q whenever an F.I.R. got recorded, a police officer was obliged to go through the entire length of investigation as he was permitted by section 157(l) (b) of the Cr.P.C. to refuse to investigate a case. As has been mentioned above with reference to the provisions of section 54 of the Cr.P.C. irrespective of the fact whether an F.I.R. did or did not stand recorded and also irrespective of the fact whether person did or did not stand nominated as an accused person, a police officer could arrest a person only after the conditions prescribed therefore by the said section 54 stood satisfied.

24. It must, therefore, be kept in mind that mere registration of an F.I.R. could bring no harm to a person against whom it had been recorded.

No one, consequently, need fear a false F.I.R. And if a police officer arrested a person in the absence of the requisite material justifying the same and only on the pretext of -such a person being mentioned in an F.I.R., then such would be an abuse of power by him and the remedy for such a misuse of power would not be to permit another abuse of law by allowing an unlawful exercise of collection of evidence to assess the veracity of allegations levelled through the information conveyed to a S.H.O. before recording of an F.I.R. The remedy lies elsewhere.

25. As has been mentioned above, no provisions exists in the Code of Criminal Procedure or in any other law which permitted a S.H.O. to refuse to record an F.I.R. provided the information conveyed to him disclosed the commission of a cognizable offence. However, we have come across some cases wherein it was said that the provisions of section 157(l)(b) of the Cr.P.C. or the provisions of Rule 24.4 of the Police Rules of 1934 were the kind of provisions which did allow the C S.H.O. to do so. The impression is misconceived and fallacious. The said provisions of section 157(1), Cr.P.C. read as under: -

“157. Procedure where cognizable offence suspected.-(l) If, from information received or otherwise an Officer Incharge of a Police Station has reason to suspect the commission of an offence which he is empowered under section 165 to investigate, he shall forthwith send a report of the same to a Magistrate empowered to take cognizance of such offence upon a police report, and shall proceed in person, or shall depute one of his subordinate officers not being below such rank as the Provincial Government may, by general or special order, prescribe in this behalf to proceed, to the spot, to investigate the facts and circumstances of the case, and, if necessary to take measures for the discovery and arrest of the offender. Provided as follows:

(a) Where local investigation dispensed with.-When any information as to the commission of any such offence is given against any person by name and the case is not of a serious nature, the Officer Incharge of a Police Station need not proceed in person or depute a subordinate officer to make an investigation on the spot;

(b) Where Police Officer Incharge sees no sufficient ground for investigation.-If it appears to the Officer Incharge of a Police Station that there is no sufficient ground for entering on an investigation, he shall not investigate the case;”

What transpires from a bare reading of these provisions contained in the main body of subsection (1) of section 157, Cr.P.C. is that whenever an Officer Incharge of a Police Station, from information received i.e. F.I.R. or otherwise, even suspects the commission of a cognizable offence, he is obliged to commence, immediately, the investigation of such a case and further that such an investigation had to be done at the spot i.e. at the place of occurrence and not while sitting in his office or elsewhere. The provisions of clauses (a) and (b) of the said subsection (1) are exceptions to the said command of the said subsection Clause (a) mentions the exceptional situation where an Investigating Officer needs not carry out the investigation at the place of occurrence and clause (b) envisages a situation where the S.H.O. was permitted to refuse to investigate a case which discretion, is however, exercisable subject to the conditions mentioned in subsection (2) of section 157, Cr.P.C. and is subject to the control of a superior police officer under section 158, Cr.P.C. and a magisterial check under section 159 of the said Code.

26. It will thus be noticed that the provisions of section 157, Cr.P.C. equip a police officer only with a discretion to refuse to investigate a case and nowhere do these provisions, even

remotely indicate, any power vesting in the S.H.O. to REFUSE TO RECORD AN F.I.R. if the information conveyed to him disclosed the commission of a cognizable offence. Needless to add that rules are always subordinate to the statutory provisions and no rule can permit what was not allowed by a statutory provision.

27. The conclusions that we draw from the above, rather lengthy discussion, on the subject of F.I.R., are as under:--

(a) no authority vested with an Officer Incharge of a Police Station or with anyone else to refuse to record an F.I.R. where the information conveyed, disclosed the commission of a cognizable offence-

(b) no authority vested with an Officer Incharge of a Police Station or with any one else to hold any inquiry into the correctness or otherwise of the information which is conveyed to the S.H.O. for the purposes of recording of an F.I.R.

(c) any F.I.R. registered after such an exercise i.e. determination of the truth or falsity of the information conveyed to the S.H.O., would get hit by the provisions of section 162, Cr.P.C.

(d) existence of an F.I.R. is no condition precedent for holding of an investigation nor is the same a prerequisite for the arrest of a person concerned with the commission of a cognizable offence;

(e) nor does the recording of an F.I.R. mean that the S.H.O. or a police officer deputed by him was obliged to investigate the case or to go through the whole length of investigation of the case mentioned therein or that any accused person nominated therein must be arrested; and finally that,

(f) the check against lodging of false F.I.Rs. was not refusal to record such F.I.Rs, but punishment of such informants under S.182, P.P.C. etc.

which should be, if enforced, a fairly deterrent against misuse of the provisions of S.154, Cr.P.C.

28. This brings us to the institution of Ex-OFFICIO JUSTICES OF THE PEACE and the new powers conferred on them.

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29. The provisions of section 22 of the Code of Criminal Procedure, as originally enacted in the year 1898, introduced the institution of

Justices of the Peace. The Governor-General in Council so far as the whole or any part of the then British India outside the Presidency Towns and every Local Government, vis-a-vis the area subject to its administration, could appoint persons as the Justices of the Peace. The provisions of sections 23 and 24 of the said Code omitted by Act XII of 1923 talked of appointment of Justices of Peace for Presidency Towns while section 25 thereof constituted the Governor-General, the Governors, the Lieutenant Governors, the Chief Commissioner, the Ordinary Members of the Council of Governor-General and the Judges of the High Courts as Ex-officio Justices of the Peace with and for the whole of British India while the Sessions Judges and the District Magistrates were Ex-officio Justices of the Peace within and for the whole of the territories administered by the concerned Local Government. The Presidency Magistrates were blessed with the said status vis-a-vis the towns of which they were such Magistrates.

30. What is, however, noticeable is that these provisions did not confer any specific powers on these Justices of the Peace, Ex-officio or otherwise and they exercised only such powers as were conferred on them from time to time either under the Cr.P.C. or under other laws.

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31. The above noticed provisions of section 22, Cr.P.C. underwent some minor changes at different times and occasions and it was finally, through the Law Reforms Ordinance No.XII of 1972 that the said section was re-constituted in the form that it exists today whereby the Provincial Governments were empowered to appoint Justices of the Peace within the areas under their respective control. The same Ordinance also added two new sections to the Cr.P.C. i.e. section 22-A and 22-B which conferred certain specific powers on the Justices of the Peace and also outlined their duties.

32. The provisions relating to the Ex-officio Justices of the Peace i.e. section 25 of the said Code also suffered amendments in the year 1900, 1937, 1949 and 1960 and the said section as it stood before the promulgation of Ordinance No.CXXXI of 2002 reads as under: -

“25. In virtue of their respective offices, the Judges of the High Courts are Justices of the Peace within and for the whole of Pakistan, Sessions Judges and District Magistrates are Justices of the Peace within and for the whole of the territories administered by the Provincial Government under which they are serving.”

33. The said Ordinance No. CXXXI of 2002 promulgated on

21-11-2002 stripped the Judges of the High Courts of their status of the Ex-officio Justices of the Peace which they had enjoyed for more than century as the said provisions of section 25 of the Code of Criminal Procedure were re-constituted to read as under:

25. Ex-officio Justices of the Peace.-By virtue of their respective offices, the Sessions Judges and on nomination by them, the Additional Sessions Judges, are Justices of the Peace within and for whole of the District of the Province in which they are serving. ”

34. The same amending Ordinance No.CXXXI of 2002 added a new subsection i.e. subsection (6) of section 22-A of the Cr.P.C. and this newly added subsection (6) conferred certain powers on the Ex-officio Justices of the Peace in the following terms: -

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(6) An ex-officio Justice of the Peace may issue appropriate directions to the police authorities concerned on a complaint regarding-

(i) non-registration of a criminal case;

(ii) transfer of investigation from one police officer to another; and

(iii) neglect, failure or excess committed by a police authority in relation to its functions and duties.”

35. The result is a major departure, from the scheme heretofore in vogue regarding the administration of justice relating to crimes as it was for the first time that through the said amending Ordinance, the Sessions Judges and the Additional Sessions Judges who were the

trial and the Appellate Courts on the criminal side, had been called upon to also supervise what were, purely and essentially, the police functions i.e. the registration and investigation of criminal cases.

36. For the purposes of this petition, we are concerned, primarily, with clause (i) of the above quoted provisions of subsection (6) of the section 22-A of the Cr.P.C. These provisions create a new forum to rectify a wrong done by an Officer Incharge of a Police Station by refusing to register a criminal case i.e. not recording an F.I.R. We have held above that the provisions of section 154, Cr.P.C. command a S.H.O. to lodge an F.I.R. if the information conveyed to him disclosed the commission of a cognizable offence irrespective of the information being correct or incorrect. Undoing this wrong of non-registration of a criminal case would mean only an order to the S.H.O. to register the case. The provisions of the said subsection (6) of section 22-A, Cr.P.C. confer no additional powers on an Ex-officio Justice of the Peace to hold any enquiry to assess the credibility of such an information communicated for the purpose in question nor do the said provisions give any extra authority to the said Ex-officio Justice of the Peace to refuse registration or order non-registration of an F.I.R. in violation of or beyond the mandatory requirements of section 154, Cr.P.C.

37. We know that the prescribed forum for the determination of the correctness or falsity of the accusation levelled against some one was a court of law and not a police man or even an Ex-officio Justice of the Peace irrespective of his rank and status. And we also know from the provisions of section 190(1) of the Cr.P.C. that the lodging of an F.I.R.

and the report consequently submitted by a police officer under section 173, Cr.P.C. was only one of the three modes of reaching the prescribed competent court for such a determination. The other two channels being a private complaint and a suo motu action taken by the authorized Magistrate leading to the taking of cognizance. H

38. And if an Ex-officio Justice of the Peace who also happens to be the higher of the two subordinate courts and a trial Court with respect to certain offences and an appellate and a revisional court in other, was to declare, like it was done in the present case, that no offence at all had been committed and that the accusations were false and that also on the basis of a mere report by a police officer without any evidence having been examined by a Court of Law then we would not only be shutting out the other two channels which had been made available by law but would also be deciding the fate of criminal cases in a manner never visualised by the law makers even in the wildest of their dreams.

39. This could never be allowed.

40. Therefore, in our opinion, the only jurisdiction which could be exercised by an Ex-officio Justice of the Peace under section 22-A(6), Cr.P.C. was to examine whether the information disclosed by the applicant did or did not constitute a cognizable offence and if it did then to direct the concerned S.H.O. to record an F.I.R. without going into the veracity of the information in question, and no more. Offering any other interpretation to the provisions in question would be doing violence to the entire scheme of the Cr.P.C. which could not be permitted.

41. We are conscious of the fact that in pursuance of petitions filed under Article 199 of the Constitution, the High Courts, at times, did * refuse to issue writs directing recording of F.I.Rs. Suffice it to say that the exercise of discretion under the said jurisdiction was not dependent only on an illegality committed by a competent authority but was also controlled by some other important considerations such as the seeker of a writ being an aggrieved person; availability of alternative remedies such as filing of a complaint etc. in criminal matters and the applicant

being qualified, in equity, for the grant of the sought relief. The powers of the Ex-officio Justice of the Peace under section 22-A(6) of the Cr.P.C: could, therefore, not be equated with the constitutional jurisdiction vesting in a High Court.

42. Having thus surveyed and examined all the relevant provisions of the law regulating the subject, we find and hold that the initial act of the Officer Incharge of Police Station Cantt. Of District Okara, refusing to record, in the register of F.I.Rs., the information conveyed to him by Bashir petitioner which information did disclose the commission of a K cognizable offence, was illegal. And equally invalid was the exercise undertaken by the Ex-officio Justice of the Peace which had finally culminated in his order dated 12-12-2005. No exception could, however, be taken to the action of the concerned S.H.O. who finally did what the law commanded him to do i.e. recording of F.I.R. No. 16 dated 25-1- 2006 at his police station.

43. The learned Judge in Chambers of the Lahore High Court quashed the said F.I.R. only on the ground that while securing compliance, from the concerned S.H.O. of one of his legal obligations, Bashir complainant had not disclosed the dismissal, by an Ex-officio Justice of the Peace, of his application moved for the purpose. The discretion so exercised by His Lordship in the High Court, could not be sustained for more than one reasons. Firstly, because recording of a F.I.R. was not a discretionary relief to be granted by a S.H.O. which could be refused if the one seeking registration of a criminal case had suffered certain acts which disentitled him to a relief in equity. Secondly, L it appears to have escaped the notice of the learned High Court that a crime was an offence committed against the State; that the position of the one bringing the commission of such a crime to the notice of the competent authorities was never more than a witness and that an offender could never be permitted to escape punishment only because of some error suffered by an informant while putting the machinery of law into motion. The remedy may well lie in punishing the informer for his faults but not in sparing a criminal. Consequently, we find it difficult for us to maintain even the impugned judgment which was passed by the Lahore High Court resulting in the quashment of the F.I.R. in question.

44. This petition is, therefore, converted into an appeal which is allowed as a result whereof the above noted order dated 12-12-2005 of an Ex-officio Justice of the Peace at Okara and the impugned judgment of the Lahore High Court dated 22-3-2006 passed in Writ Petition No.2279 of 2006 to the extent that it quashed F.I.R. No. 16 of 2006 of P.S. Cantt. Okara, are set aside and as a further consequence whereof the said F.I.R. stands revived and the concerned S.H.O. shall be free to deal with the same in accordance with law. The learned High Court, shall, however, be at liberty to proceed with the notice issued to Bashir complainant "under section 193, Cr.P.C".

45. While we were examining the question of registration/non-registration of criminal cases in the context of clause (i) of subsection (6) of section 22-A of the Code of Criminal Procedure, we also came across clause (ii) of the said subsection which empowered an Ex-officio Justice of the Peace to decide complaints relating to the transfer of investigations. We thought we would say a few words, may be not as a declaration of law as the said question was not a part of the lis before us but at least as some food for thought for all concerned.

46. Identification and punishment of offenders is one of the matters for which a special law i.e. the Code of Criminal Procedure was enacted in the year 1898. Trial of accused persons was the exercise prescribed by the said Code for the said purpose. Needless to say that determination of guilt or innocence of accused persons would be a futile desire if no evidence was available with the courts for the said purpose. The Code of Criminal Procedure, therefore, devised a mechanism for collection of evidence and gave it the name of investigation. The said Code, as would be evident, inter alia from its provisions contained in sections 156 and 157, thought that it could trust a police officer of the status of an officer incharge of a police station for the purpose

and consequently entrusted him with the said task. But then realizing that in times to come, the rising number of criminal cases registered in a given police station could make it impossible or at least difficult for him to investigate all the cases himself, the framers of the Cr.P.C., through subsection (1) of its section 157, allowed him even to depute his subordinates to carry out any or some of the investigation required to be conducted by him. Gradually, the S.H.O. started to use these provisions of section 157(1), Cr.P.C.

more or less like a toy. He would assign a case to one of his subordinates in his Police Station; then withdraw the investigation from him and depute another subordinate for the purposes and this process then continued with no end. This was not all as the police officers who were superior in rank to an Officer Incharge of a Police Station and who, by virtue of the provisions of section 551, Cr.P.C. could exercise the same powers throughout the local areas to which they were appointed, which a S.H.O. could exercise within the limits of his police station, also entered the arena. The result was that an investigation then became a rolling stock not only within the police station to which it belonged but throughout the district at the instance of the S.P., the range at the instance of the then D.I.-G. and even throughout the Province at the intervention of the then Inspector-General of Police. This tossing around of the investigations acquired the name of transfer of investigations and in turn also acquired notoriety as the same caused inordinate delays in the conclusion of investigations; resulted in contradictory opinions of different Investigating Officers and in collection of pieces of evidence which were irreconcilable and also because motives also started to be attributed to orders leading to such transfers. Needless to add that suchlike investigations had devastating effects on the quality of trials that followed. And it was for these reasons that the Superior Courts of the country never approved of the said so-called transfers of investigations and always deprecated the same.

47. To wind up this discussion, may we say that we have not come across any Part, Chapter, section, a subsection or even a clause in the Cr.P.C. as it existed prior to the promulgation of the Amending Ordinance No.CXXXI of 2002 which talked of any concept of transfer of investigations of criminal cases. And that it was through an unwelcome and a laboured deviation of the provisions of section 157(1) of the Cr.P.C. which provisions had actually been enacted to facilitate a S.H.O. in the discharge of his legal obligations of holding investigations, that this hitherto alien institution of transfer of investigations got introduced into the system. We may also reiterate that police has no powers, inherent in them, regarding investigation of criminal cases. It is only the S.H.O. and for his assistance his subordinates, which were picked up by the Cr.P.C. and then borrowed from the Police Force, established under the then Police Act of 1861 (now continuing under the Police Order of 2002), to perform a task which fell within the exclusive field, created by and belonging to the Code of Criminal Procedure. They are, at best some stars thriving on some light borrowed from the Cr.P.C. Otherwise we know of statutes like the Customs Act, the Prevention of Corruption Act, the Drug Act, the Control of Narcotic Substances Act and others which opted not to depend upon the members of the Police Force and instead established their own investigating and executing agencies.

48. Some of the questions which are likely to confront the competent courts in due course and which would demand resolution could be summarized as under:-

(a) Has this laboured innovation of transfer of investigations introduced by the police, yielded any advantageous benefits to the courts of law in the administration and dispensation of justice in the field of crimes or was it just a source of nuisance for them only complicating the already complicated issues and deserved to be discouraged?

(b) Could a power be conferred on an Ex-officio Justice of the Peace to do that which was not recognized by the Cr.P.C. and was unknown to it?

(c) While deciding the fate of a complaint about transfer of an investigation, the Ex-officio Justice of the Peace, who also happened to be a Sessions or at least an Additional Sessions Judge, will have to pronounce upon the quality of investigation conducted in a given case and this having been so done, what would be its effects on the appreciation of the evidence collected through the said exercise when a trial Court was to undertake the said exercise which trial court could well even be a Magistrate and thus a court subordinate to such an Ex-officio Justice of the Peace?

(d) Section 18 and some other provisions of the Police Order of 2002 being the Chief Executive's Order No.22 of 2002, carries certain provisions regarding investigation of criminal cases which are, at least prima facie, not reconcilable with the special and the parent provisions on the subject i.e. the provisions of the Code of Criminal Procedure and if it be so then what would be the effect of such-like illegal investigations on the trials that followed?

49. It is being said that the amendments in question which were introduced in section 22-A and section 25 of the Code of Criminal Procedure, 1898, had been so made to lessen the excessive burden of the High Courts which had got created through filing of writ petitions seeking registration of criminal cases and transfer of investigations. If this be so, then we would not be sure about the questionable wisdom leading to these amendments which seek to relieve an elder brother of its burden by adding the same on to the back of an already overloaded younger brother.

50. Let copies of this judgment be sent to the Registrars of all the four High Courts in the country who shall, in turn, send the same to all the learned Sessions Judges in their respective provisions for their guidance and compliance. Copies of this judgment shall also be sent to the Law Secretaries of the Federation and the four Provinces for reexamining the matter of the amendments in question in the light of the observations made hereinabove.

M.B. A./M-72/S Order accordingly.

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